

August 10, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0001165 Victor Navarrete vs. Jennin Valentine Martinez et al

Plaintiff Victor Navarrete's unopposed motion for order deeming each request for admissions ("RFAs") as admitted is granted. The Court awards Plaintiff sanctions in the amount of \$585.00 payable by Defendants JVM Landscape Construction, Inc. ("JVM") and Jennin Valentine Martinez ("Martinez") jointly and severally no later than ten (10) days from service of notice of entry of this order.

Request to Deem Matters Admitted

A party may move for an order deeming its Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Electronic service extends the deadline by two (2) court days. Code Civ. Proc. § 1010.6(a)(3)(B). Service by mail extends the deadline by five (5) calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served his RFAs, Set No. One on Defendant JVM on December 30, 2024 by electronic mail, making January 31, 2025 the deadline for Defendant to serve a timely response. Tsai Decl., ¶ 4, Ex. B. Plaintiff served his RFAs, Set No. Two on Defendant JVM and RFAs, Set No. One on Defendant Martinez by mail on April 16, 2026, making May 25, 2026 the deadline for Defendants to serve timely responses. Tsai Decl., ¶ 5, Ex. C. Plaintiff has not received any response from Defendant. Tsai Decl., ¶ 6. Therefore, the matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure Section 2033.220.

Request for Sanctions

"It is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion." Code Civ. Proc. § 2033.280(c). An award of monetary sanctions must be "reasonable under the circumstances" *Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437; Code Civ. Proc., § 2023.030(a) (monetary sanctions may be awarded to compensate a party for reasonable expenses). "The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award." *Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 791.

Based on information appearing in the Tsai declaration, the monetary sanctions requested by Plaintiff reflects 2.0 total attorney hours for preparing the motion. Tsai Decl., ¶ 8. Considering

the substance of the motion, which does not present a large number of requests, complex factual or legal issues, or extensive pleadings, the Court finds the time expended by counsel to prepare the instant motion is excessive. Moreover, the Court finds Ms. Tsai hourly rate is not supported by other known existing attorney hourly rates in this county or information contained in a declaration related to her training, experience and work associated with the instant matter.

Under the totality of the circumstances present here, including the Court's experience with addressing attorney's fee requests, the Court finds 1.5 hours of time for attorney Tsai at a reasonable hourly rate of \$350.00, plus the filing fee of \$60.00, constitutes the reasonable amount of attorney's fees and costs incurred by Plaintiff. Thus, the Court awards Plaintiff sanctions in the amount of \$585.00 payable by Defendants jointly and severally no later than ten (10) days from service of notice of entry of this order.

2. CL0003941 Wells Fargo Bank, N.A. vs. Kathleen Sivel, an individual

No appearances required. In light of the proof of service of the Summons and Complaint filed on June 5, 2026 and on the Court's own motion, the OSC re Dismissal is dismissed.

3. CL0003949 CREDITORS ADJUSTMENT BUREAU, INC., vs. ISRAEL GARCIA TAPIA

No appearances required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to October 12, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date. The Court notes, the declaration of non-service filed on July 1, 2026 fails to set forth ongoing reasonable efforts in and by itself; however, the declaration of counsel evidences Plaintiff is and has been making diligent efforts to effectuate service of process.

4. CL0003950 Midland Credit Management Inc. vs. Casey R Timms

No appearances required. On the Court's own motion and in light of the proof of service of the Summons and Complaint filed on June 12, 2026, the OSC re Dismissal is dismissed.

5. CU0001529 NATIONAL COLLEGIATE STUDENT LOAN TRUST 2005-2, a Delaware Statutory Trust(s) vs. SANDE KAY

The Court, on its own motion and pursuant to good cause under California Rules of Court, Rule 3.185(c)(2), vacates the notice of settlement and places the case back on the active calendar.

Plaintiff's motion to vacate the notice of settlement and place the case back on active calendar pursuant to Code of Civil Procedure § 473(b) is denied as moot.

Discussion

Plaintiff moved for relief under Code of Civil Procedure § 473(b). However, such relief is not warranted in the present circumstances. Pursuant to such, the "court may, upon any terms as